



GRA
Integrity. Fairness. Service.

RIGHT TO INFORMATION MANUAL

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1.0 Overview

- This Right to Information (RTI) Manual is pursuant to the provisions of the recently passed Act, 2019 (Act 989). The Act gives substance to the constitutional right to information provided under Article 21 (1) (f) of the Constitution, enabling citizens access to official information held by government institutions, and the qualifications and conditions under which the access may be obtained. In accordance with Section 80, the Act applies to information which came into existence before, or which will come into existence after the commencement of the Act.
- 1.1 Purpose of Manual – To inform/assist the public on the organizational structure, responsibilities and activities of the Ghana Revenue Authority (GRA) and provide the types of information and classes of information available at GRA, including the location and contact details of its Information Officers.

2.0 DIVISIONS UNDER GHANA REVENUE AUTHORITY (GRA)

This section describes the GRA's vision and mission and lists the names of all Directorates and Departments under the institution, including the description of organizational structure, responsibilities, details of activities and classes and types of information accessible at a fee.

VISION

To be a world-class revenue administration recognized for the professionalism, integrity, and excellence.

MISSION

To mobilize revenue for national development in a transparent, fair, effective and efficient manner.

Divisions under Ghana Revenue Authority (GRA)	
1.	● Domestic Tax Revenue Division (DTRD)
2.	● Customs Division (CD)
3.	● Support Services Division (SSD)

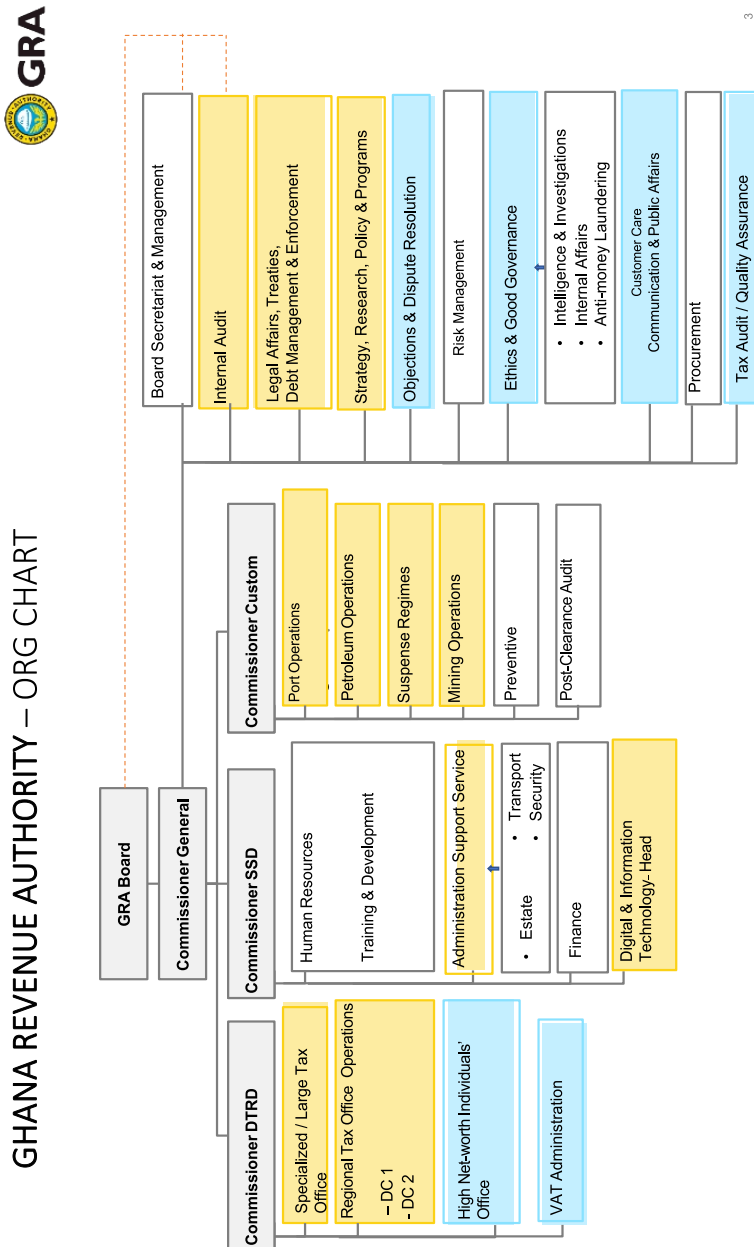
THE RESPONSIBILITIES OF GRA UNDER THE REVENUE ADMINISTRATION ACT, 2016 (ACT 915) ARE AS FOLLOWS;

1. Assess and collect taxes, interests and penalties on taxes due to the Republic within optimum efficiency.
2. Pay the amount collected into the Consolidated Fund unless otherwise provided by Act 791 and other Acts.
3. Promote Tax compliance and tax education.
4. Combat tax fraud and evasion and cooperate with other Law enforcement agencies in other countries.
5. Advise District Assemblies on the assessment and collection of their revenue, prepare publish report and statistics related to revenue collection.
6. Make recommendation to the Minister on revenue collection and policy.
7. Perform any other revenue related functions as directed by the Minister or assigned under any other enactment.

2.1 DESCRIPTION OF ACTIVITIES OF EACH DIVISION

Division	Responsibilities/Activities
Domestic Tax Revenue Division (DTRD)	The DTRD is responsible for the collection of both Domestic direct and indirect taxes. The Division's core functions are to identify and assess all taxpayers for taxes and levies such as Income Tax, Excise Tax, Mineral Royalties, Valued Added Tax (VAT), National Health Insurance Levy (NHIL), Ghana Education Trust Fund (GET fund) levy, Communication Service Tax (CST), etc. and pay all amounts collected into the Consolidated Fund.
Customs Division (CD)	The Customs Division is responsible for the collection of International indirect taxes and levies. These includes Import Duty, Import VAT, Export Duty, Petroleum Taxes and Import Excise. These taxes are generally collected on general goods as well as vehicles. The Division also performs a preventive function by patrolling the country's borders and other strategic locations. The Customs Division performs agency duties on behalf of the Government, Ministries and Departments. These duties relate to enforcing laws on prohibitions and restrictions of import and exports, facilitation of internal trade, foreign exchange control, public health, security and safety, among others.
Support Services Division (SSD)	The Support Services Division (SSD) provides administrative and managerial support to DTRD and Customs Division to enable them to perform their operational functions efficiently. The Division has Departments such as Finance, Human Resources, Training, Administration and Information Technology.

2.2 GHANA REVENUE AUTHORITY'S ORGANOGRAM



2.3 CLASSES AND TYPES OF INFORMATION

List of various classes of information in the custody of the institution:
Classes of Information Information or Statistical data on revenue collection
Types of Information Accessible at a fee:
N/A

3.0 PROCEDURE IN APPLYING AND PROCESSING REQUESTS

Section 18 of the RTI Act, 2019 (ACT 989) provides specific guidelines for application for access to information kept by a public institution. It is thus important that request for information be made in accordance with provisions under this section. The Information Officer or a designated officer is responsible for dealing with applications made to the GRA. To requests for information under the RTI Act from GRA, applicants are to follow these basic procedures:

3.1 The Application Process

- a. Application by any person or organization who seeks access to information in the custody of GRA must be made in writing, using the standard RTI Application Form. **(See Appendix A for the Standard RTI Application Form)**. A copy of the form can be downloaded or completed and submitted electronically on the GRA's official website on www.gra.gov.gh or the Ministry of Information website on www.moi.gov.gh
- b. In making the request, the following information must be provided:
 - Date of the Application.
 - Name of the applicant or the person on whose behalf an application is being made.
 - Name of the organization represented by the applicant.
 - Available contact details of the applicant or address of the person/organization on whose behalf an application is being

- Brief description of information being sought. (Applicant are to specify the class and type of information including cover dates).
- Payment of relevant fee if applicable.
- Signature/ thumb print.

c. Provision Of Identification

The applicant must present at least one (1) of the following valid identification cards (IDs) to serve as proof of identity:

- **Driver's License.**
- **Passport.**
- **National ID.**
- **Voter's ID.**

d. The applicant should state the format of information being requested and the mode of transmission. Example (do you need a certified true copy, normal photocopy or electronic copies. Would you want to receive it through a postal address, e-mail, courier services, fax etc.?)

e. Where an applicant cannot write due to illiteracy or a disability, he/she may make the request orally. However, oral requests must conform to the following guidelines;

- The Information Officer must reduce the oral request into writing and give a copy of the written request as recorded for the applicant to authenticate. (s. 18) (3).
- The Information Officer shall clearly and correctly read and explain the written request to the understanding of the applicant.
- A witness must endorse the face of the request with the writing; *"the request was read to the applicant in the language the applicant understand and the applicant appeared to have understood the content of the request."*
- The applicant must then make a thumb print or mark on the request.

3.2 PROCESSING THE APPLICATION

- Applications would be treated on a priority basis. The Information Officer is responsible for handling requests to ensure that statutory deadlines are met.
- He/she reviews and identify which part is exempt based on Section 5 to 16 of the RTI Act ,2019 (Act 2019) and determines which of the units in the institution have the records or is responsible for the subject matter of the request.
- Provision is made under Section 20 for the transfer of an application within a period of not more than ten days of receipt where the public institution to which the application was initially made is unable to deal with the application. In such situations, applicants would be notified accordingly with the reasons and dates of transfer.
- For information readily available in official publications, the Information Officer shall direct the applicant to the institution having custody of that publication and notify the public institution of the request. (s.21).
- If a requested information is not readily accessible, the estimated time it will take to search for the information would be communicated to the applicant.

3.3 RESPONSE TO APPLICANTS

a. The Information Officer is required under section 23 of the RTI Act to notify applicants within fourteen (14) days from the date of receipt. Applicants should however note that the time limit does not apply to applications transferred to another public institution or which has been refused due to failure to pay the prescribed deposit or fee. (s.23) (6). The notice should state:

- Whether or not full access to the requested information will be granted or only a part can be given and the reason.
- The format and mode of the access.
- The expected publication or submission day of the information in the case of a deferred access.

- The prescribed fee (s.24).
- b. The Information Officer can request an extension to the deadline if:
- Information requested is voluminous.
 - It is necessary to search through a large number of records.
 - The information has to be gathered from more than one source.
 - Consultation with someone outside the institution is required.
- c. The Information Officer would in such situations notify the applicants of an extension as well as the period and reason for the extension. An extension should not be more than seven days.
- d. In giving applicants access to information, the applicant would be given the opportunity to inspect the information or receive a copy physically or in any other form required such as electronic, magnetic, optical or otherwise, including a computer print-out, various computer storage devices and web portals.
- Where access cannot be given in the form specified by the applicant, access can be given in some other form. In such cases, the applicant shall be provided with a reason why access cannot be given in the specified form.

AMENDMENT OF PERSONAL RECORD

A person given access to information contained in records of a public institution may apply for an amendment of the information if the information represents the personal records of that person and in the person's opinion, the information is incorrect, misleading, incomplete or out of date.

4.1 How to apply for an Amendment

- a. The application should be in writing indicating;
 - Name and proof of identity.
 - Particulars that will enable the records of the public institution identify the applicant.
 - The incorrect, misleading, incomplete or the out-of-date information in the record.
 - Signature of the applicant.
- b. For incomplete information claimed or out of date records, the application should be accompanied with the relevant information which the applicant considers necessary to complete the records.
- c. The address to which a notice shall be sent should be indicated.
- d. The application can then be submitted at the office of the public institution.

APPENDIX A: STANDARD RTI REQUEST FORM

[Reference No.:]

**APPLICATION FOR ACCESS TO
INFORMATION UNDER THE RIGHT TO
INFORMATION ACT, 2019 (ACT 989)**



1.	Name of Applicant:			
2.	Date:			
3.	Public Institution:			
4.	Date of Birth:	DD	MM	YYYY
5.	Type of Applicant:	Individual ☐ Organization/Institution ☐		
6.	Taxpayer Identification Number			
7.	If Represented, Name of Person Being Represented:			
7(a)	Capacity of Representative:			
8.	Type of Identification:	☐ National ID Card ☐ Passport ☐ Voter's ID ☐ Driver's License		
8(a)	ID. No.:			
9.	Description of the Information being sought (specify the type and class of information including cover dates. Kindly fill multiple applications for multiple requests):			
10.	Manner of Access:	☐ Inspection of Information ☐ Copy of Information ☐ Viewing / Listen ☐ Written Transcript ☐ Translated (specify language) 		
10(a)	Form of Access	☐ :Hard copy ☐ Electronic copy ☐ Braille		

11.	Contact Details:	☐ Email Address_____
		☐ Postal Address_____
		☐ Tel: _____
12.	Applicant's signature/thumbprint:	
13.	Signature of Witness (where applicable) <i>"This request was read to the applicant in the language the applicant understands and the applicant appeared to have understood the content of the request."</i>	

Appendix B: Contact Details of Ghana Revenue Authority's Information Officer

Name of Information/Designated Officer:

MR. BEYUO CLETUS

Telephone/ E-mail of Information Unit:

0800900110 / rti@gra.gov.gh

Postal Address of the institution:

**Ghana Revenue Authority,
Off Starlets 91 Road,
Near Accra Sport Stadium,
P.O. Box 2202 Ministries,
Accra.
Digital Address:GA-144-3422**

7. APPENDIX C: ACRONYMS

Acronym	Literal Translation
<i>RTI</i>	<i>Right to Information</i>
<i>MDA</i>	<i>Ministries, Departments and Agencies</i>
<i>s.</i>	<i>section</i>
<i>GRA</i>	<i>Ghana Revenue Authority</i>
<i>DTRD</i>	Domestic Tax Revenue Division
<i>CD</i>	Customs Division
<i>SSD</i>	<i>Support Services Division</i>
<i>LTO</i>	<i>Large Taxpayer Office</i>
<i>TSC</i>	<i>Taxpayer Service Centres</i>
<i>DC</i>	<i>Deputy Commissioner</i>
<i>gh</i>	<i>Ghana</i>
<i>gov</i>	<i>Government</i>
<i>VAT</i>	<i>Valued Added Tax</i>
<i>NHIL</i>	<i>National Health Insurance Levy</i>
<i>GET fund</i>	<i>Ghana Education Trust Fund</i>
<i>CST</i>	<i>Communications Service Tax</i>

8. APPENDIX D: GLOSSARY

This Glossary presents clear and concise definitions for terms used in this manual that may be unfamiliar to readers listed in alphabetical order. Definitions for terms are based on section 84 of the RTI Act.

Term	Definition
Access	<i>Right to Information</i>
Access to information	<i>Right to obtain information from public institutions</i>
Contact details	<i>Information by which an applicant and an Information Officer may be contacted</i>
Court	<i>A court of competent jurisdiction</i>
Designated officer	<i>An officer designated for the purposes of the Act who perform similar role as the Information Officer</i>
Exempt information	<i>Information which falls within any of the exemptions specified in sections 5 to 16 of the Act</i>
Function	<i>Powers and duties</i>
Government	<i>Any authority by which the executive authority of the Republic of Ghana is duly exercised</i>
Information	<i>Information according to the Act includes recorded matter or material regardless of form or medium in the possession or under the control or custody of a public institution whether or not it was created by the public institution, and in the case of a private body, relates to the performance of a public function.</i>
Information officer	<i>The Information Officer of a public institution or the officer designated to whom an application is made</i>
Public	<i>Used throughout this document to refer to a person who requires and/or has acquired access to information.</i>
Public institution	<i>Includes a private institution or organization that receives public resources or provides a public function</i>
Right to information	<i>The right assigned to access information</i>
Section	<i>Different parts of the RTI Act</i>

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Contact us with feedback and comments

The Communication and Public Affairs (CPA) Department invites comments and suggestions on the Right to Information Manual Please send these comments to communication@gra.gov.gh or info@gra.gov.gh or send them to Room 306, head office.

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